

FEB. 28 2017

State Board of  
Behavioral Health Licensure

**BEFORE THE STATE BOARD OF BEHAVIORAL HEALTH LICENSURE  
STATE OF OKLAHOMA**

|                             |   |                         |
|-----------------------------|---|-------------------------|
| STATE OF OKLAHOMA, ex rel., | ) |                         |
| STATE BOARD OF BEHAVIORAL   | ) |                         |
| HEALTH LICENSURE,           | ) |                         |
|                             | ) |                         |
| Petitioner,                 | ) |                         |
|                             | ) | Complaint No. 16-LPC-91 |
| vs.                         | ) | Complaint No. 16-LPC-39 |
|                             | ) | Complaint No. 16-LPC-38 |
|                             | ) | Complaint No. 16-LPC-37 |
| LEXIE DARLENE BATCHELOR,    | ) |                         |
| LPC, LICENSE NO. 5044       | ) |                         |
|                             | ) |                         |
| Respondent.                 | ) |                         |

**FINDINGS OF FACT, CONCLUSIONS OF LAW AND FINAL ORDER**

On December 9, 2016, this matter came for hearing before the Oklahoma State Board of Behavioral Health Licensure. Board members Balmer, Brosi, Collins, Moran, Ototivo, Sailor and Stevenson were present. Board member Barnett recused. Chair Collins presided. Marie Schuble, Assistant Attorney General, served as prosecutor for the Board. Respondent received notice but did not appear and was not represented by counsel. The Board heard testimony from witnesses and admitted exhibits into evidence.

The Complaint in the instant matter is hereby incorporated by reference.

By clear and convincing evidence, the Board hereby issues these Findings of Fact, Conclusions of Law and Final Order.

**FINDINGS OF FACT**

1. Respondent is a Licensed Professional Counselor ("LPC") in the State of Oklahoma, holding License Number 5044, and was licensed on or about April 18, 2013.

2. At all relevant times, Respondent owned LXE Counseling.
3. On September 8, 2016, the Board received an Exclusion letter from the Office of the Inspector General, U.S. Department of Health and Human Services, notifying the Board that Respondent was being excluded from participation in any capacity in Medicare, Medicaid and all Federal health care programs.
4. On September 8, 2016, a Request for Inquire (RFI) was received by the Board (16-LPC-91). The RFI stated that the Board received notice of exclusion from the Office of Inspector General on September 8, 2016, for Medicaid fraud.
5. On July 29, 2016, a "Stipulated Consent Judgment Against LXE Counseling, LLC, and Lexie Darlene George a/k/a Lexie Darlene Batchelor In Favor of the United States and State of Oklahoma" was filed in the United States District Court for the Western District of Oklahoma in the case of *The United States and the State of Oklahoma v. LXE Counseling, LLC, et al*, (CIV-13-1129-R). In the Consent Judgment, Respondent and LXE Counseling stipulated to violations of the False Claims Act, 31 U.S.c. § 3729 *et seq.*, the Oklahoma Medicaid False Claims Act, 63 O.S. § 5053, *et seq.*, and the Oklahoma Medicaid Program Integrity Act, 56 O.S. § 1001, *et seq.* The violations are summarized as follows: submission of psychotherapy claims for services rendered by person not qualified; submission of claims for services that were double-billed; submission of claims for services rendered while Respondent was at a funeral, at a wedding and on vacations; submission of claims for telemedicine services rendered by providers not authorized to make such claims; submission of claims for psychological rehabilitation treatment services to members who never received such services. See Board Exhibit B hereby incorporated by reference.

### CONCLUSIONS OF LAW

1. The Board has jurisdiction over Respondent pursuant to 59 O.S. §§ 1905 and 1912.
2. Pursuant to 59 O.S. § 1912(A)(3), the State Board of Behavioral Health Licensure may deny, revoke, suspend or place on probation any license or specialty designation issued pursuant to the provisions of the Licensed Professional Counselors Act (59 O.S. §§ 1901-1920) to a licensed professional counselor, if the person has engaged in fraud or deceit in connection with services rendered or in establishing needed qualifications pursuant to the Act.
2. Pursuant to 59 O.S. § 1912(A)(5), the State Board of Behavioral Health Licensure may deny, revoke, suspend or place on probation any license or specialty designation issued pursuant to the provisions of the Licensed Professional Counselors Act (59 O.S. §§ 1901-1920) to a licensed professional counselor, if the person has engaged in unprofessional conduct as defined by rules established by the Board. The rules of professional conduct are provided for in Subchapter 3 of Chapter 10 of Title 86 of the Oklahoma Administrative Code.
3. Pursuant to 59 O.S. § 1912(A)(6), the State Board of Behavioral Health Licensure may deny, revoke, suspend or place on probation any license or specialty designation issued pursuant to the provisions of the Licensed Professional Counselors Act (59 O.S. §§ 1901-1920) to a licensed professional counselor, if the person has engaged in negligence or wrongful actions in the performance of his or her duties.
4. According to OAC 86:10-3-1, “[i]t shall be the responsibility of Licensed Professional Counselors (“LPCs”), in their commitment to the understanding of human behavior, to value objectivity and integrity, and in providing services, to strive to maintain the highest standards of their profession. LPCs shall accept responsibility for the consequences of their work and make

every effort to ensure that their services are used appropriately. LPCs shall be alert to personal, social, organizational, financial, and political situations or pressures that might lead to the misuse of their influence. *LPCs shall not participate in, condone, or be associated with dishonesty, fraud, deceit or misrepresentation.* LPCs shall not exploit their relationships with clients for personal advantage, profit, satisfaction, or interest.” *Id.* (emphasis added).

5. According to OAC 86:10-3-4(a), “[i]t shall be unprofessional conduct for an LPC to plead guilty to or no contest to or be convicted of a state or federal statute if the violation directly relates to the duties and responsibilities of the counselor or if the violation involves moral turpitude.

6. Pursuant to Title 59 O.S. § 1913.1(B) and OAC 86:10-29-14, the Board has authority to assess an administrative fine not to exceed \$10,000.00 against any person found to have violated any provision of the Licensed Professional Counselors Act (59 O.S. § 1901 – 1920) or any rule promulgated by the Board.

7. Any Findings of Fact which is a Conclusion of Law is hereby incorporated by reference and *vice versa*.

#### **FINAL ORDER**

1. Respondent has violated 59 O.S. § 1912(A)(3) by engaging in fraud or deceit in connection with services rendered.

2. Respondent has violated 59 O.S. § 1912(A)(5) and OAC 86:10-3-1 by participating, condoning or associating with dishonesty, fraud, deceit or misrepresentation.

3. Respondent has violated 59 O.S. § 1912(A)(5) and OAC 86:10-3-4(a) by violating the False Claims Act, 31 U.S.C. § 3729 *et seq.*, the Oklahoma Medicaid False Claims Act, 63 O.S. § 5053

*et seq.*, and the Oklahoma Medicaid Program Integrity Act, 56 O.S. § 1001, *et seq.*, as stipulated by Respondent in the Consent Judgment entered on July 29, 2106, in the case of *The U.S. and the State of Oklahoma v. LXE Counseling, LLC, et al*, (CIV-13-1129-R), United States District Court, Western District of Oklahoma.

4. Respondent has violated 59 O.S. § 1912(A)(6) by engaging in negligence or wrongful actions in the performance of her duties.

7. Respondent is hereby assessed a fine in the amount of **TEN THOUSAND DOLLARS** (\$10,000.00).

8. Respondent's License No. 5044 is hereby **REVOKED**.

9. This Order shall be effective on the date the written order issues following Attorney General review pursuant to Executive Order 2015-33.

All members present vote "Aye".

Issued this the 28 day of February, 2017

  
DR. KELLY COLLINS, CHAIR